Pine Valley Special Service District Meeting (PVSSD)
Minutes of the Meeting held On August 1, 2012

Attending Members: Mary Esther Putnam (Chair); Dall Winn; Jeff Gardner; Spence Beckstrom
Also Present: Gerald Schiefer (Fire Chief); George Cropper (Treasurer); Beverly Udell (Secretary)
Absent: John Nichols

1. General Business:
a/b. Welcome – Meeting was opened by Mary Esther (Chair) at 6:00. Dall led the Pledge.
c. Minutes: Minutes were review for June and July, 2012. Jeff motioned to accept the minutes for both months as written. Dall seconded and all were in favor.
d. Pine Valley Building Permits Reviewed: Mary Esther read a letter from the County Attorney regarding the impact fees in respect to the Sorenson property, as well as for other similar property situations in the future (this is a follow-up to the discussion from the July 2012 meeting.) The letter stated that since our impact resolution states that "impact fee will be charged on "new building construction" and therefore in the case of the Sorenson's it is clear that an impact fee should be charged by us and paid by the Sorenson's. Beverly also gave the history of the Sorenson property history, as well as the previous owner of that same property (Staples) having not paid the PVSSD annual fee since at least 2007 (at which time the Staples had moved and did not leave a forwarding address, so therefore could not be billed.) In a nutshell, the PVSSD fee for that property had not been paid since prior to 2007. Mary Esther also spoke about the Brook's house that had burned down on Lloyd Canyon, which was a result of arson. The question was if in situations like these, should be be charging impact fees for rebuilding of a home. Jeff reminded everyone that we have to be so careful with impact fees due to possible litigation. Vicki Engles paid an impact fee on a carport. George stated that anything that requires a building permit should then also require an impact fee. Dall motioned that in reference to the property of John and Melissa Sorenson and the proposed $2500 impact fee for new construction on their property – it has been investigated and the previous owners had not paid annual fees since before 2007. The Sorenson's have not paid a fee either (because they were not aware they need to). The Sorenson's are building a new structure on the property, hence we are correct in charging the impact fee. We will keep the $2500 that they have paid us for that new construction impact fee. Jeff seconded the motion and all else were favor.

Capital Construction: 820 E Mountain View Dr. (Owner Mel Close) is redoing the decking around the home. Does Mr. Close owe an impact fee? There is already a current deck on the house that has fallen in disrepair. There is not a building permit required for the new deck and therefore if we charged a fee it would be in error because basically Mr. Close is doing "repair, upkeep and maintenance." No impact fee will be charged.
e. Board Member Reports -
Dall: The firemen's appreciation meal itself will be paid for by the PVSSD. The dinner invitations, new shirts and caps, as well as the 10+ year awards will all be paid for by the Pine Valley Dinner Committee.
Mary Esther: N/A
Spence: Regarding the cattle guard on the curve (entrance to Pine Valley) and also the one near Gray's Ranch road. The Building Commission will pay for the labor if the Forestry Department will pay for materials. The County Road crew will do the labor and replace the timbers etc., at the cattle guards and the P.V. Dinner Committee has offered to help pay for a contractor. We are still waiting for the County to make that repair, at which time we can then proceed with our portion of the gate repair.
Jeff: After the last heavy rains, the County now has more road work to do in Pine Valley.
John: (Absent)
f. Fire Chief – Gerald (see report).
g. Treasurer Report – George (see report). Beverly and George have received their bonding for the next year. They are covered for $7500 each.
2 - Public Comments: N/A
Dall moved to adjourn at 7:06 p.m. All were in favor. The next Board meeting will be held on Wednesday, September 5, 2012 at 6:00 P.M.